

The Court-fees (Bihar Amendment) Act, 1977

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State of Bihar - Act

The Court-fees (Bihar Amendment) Act, 1977

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The Court-fees (Bihar Amendment) Act, 1977

Act 20 of 1977

Published on 1 January 1977

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The Court-fees (Bihar Amendment) Act, 1977

Bihar Act

20 of 1977

Received the assent of the Governor on 22.12.1977, Published in Bihar Gazette, (Extraordinary) dated December 30, 1977.

An Act to amend the Court-fees Act, 1870 (Act VII of 1870) in its application to the State of Bihar.

Be it enacted by the Legislature of the State of Bihar in the Twenty-Eighth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Court-fees (Bihar Amendment) Act, 1977.

(2)

It shall come into force on the 1st day of December, 1977.

2.

Insertion of new Chapter V-A in Act VII of 1870.

- After Chapter V of the Court-fees Act, 1870 (Act VII of 1870) (hereinafter referred to the said Act) the following Chapter and Section shall be inserted, namely:-

"Chapter V-A.-Levy of Additional Surcharge.

30.

-A. The fees leviable under the Act, shall be increased in each case by an additional surcharge at the rate of ten per centum of the amount of the Court Fees."

3.

Substitution of new Section for Section 35 of Act VII of 1870.

- For Section 35 of the said Act, the following Section shall be substituted, namely:-

"35. Power to remit or reduce Court-fees. - The State Government may, subject to such condition or restriction as it may think fit to impose, by order published in the Official Gazette, reduce or remit in relation to all or any class of persons, in the whole or any part of the State, all or any of the fees mentioned in the First and Second Schedules to this Act and may in like manner cancel or vary such order."

4.

Repeal and savings.

(1)

The Court-fees (Bihar Fourth Amendment) Ordinance, 1977 (Bihar Ordinance No. 190 of 1977) is hereby repealed.

(2)

Notwithstanding such repeal anything done or any action taken in the exercise of any powers conferred by or under the said Ordinance shall be deemed this Act as if, this Act were in force on the day on which such things or action was done or taken.

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